

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DENNIS EUGENE GREEN,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JONATHAN
DECASTRO, BADGE NUMBER 94489, SERGEANT
JWANN LAYTON, BADGE NUMBER 925588, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO POLICE SERVICE AREA 3,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Kings
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
195 Cozine Avenue
Brooklyn, New York 11207

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
August 1, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
DENNIS EUGENE GREEN
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER JONATHAN DECASTRO,
BADGE NUMBER 94489,
SERGEANT JWANN LAYTON, BADGE
NUMBER 925588,
Police Service Area 3
25 Central Avenue
Brooklyn, New York 11206

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DENNIS EUGENE GREEN,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER JONATHAN
DECASTRO, BADGE NUMBER 94489, SERGEANT
JWANN LAYTON, BADGE NUMBER 925588, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO POLICE SERVICE AREA 3,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff DENNIS EUGENE GREEN by and through his attorneys, TRACIE A.
SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK,
POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT
JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE
OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, was employed by Defendant CITY OF NEW YORK as a police officer.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, acted within the scope of his employment for Defendant CITY OF NEW YORK.
5. That at all times hereinafter mentioned, Defendant POLICE OFFICER JONATHAN

DECASTRO, BADGE NUMBER 94489, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Kings, City of New York, and under the authority of his office as police officer for said county and city.

6. Upon information and belief, that at all times hereinafter mentioned, Defendant SERGEANT JWANN LAYTON, BADGE NUMBER 925588, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant SERGEANT JWANN LAYTON, BADGE NUMBER 925588, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant SERGEANT JWANN LAYTON, BADGE NUMBER 925588, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Kings, City of New York, and under the authority of his office as police officer for said county and city.

9. Upon information and belief, that at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 were employed by Defendant CITY OF NEW YORK as police officers.

10. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 acted within the scope of their employment for Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of their office as police officers for said city and county.

12. That on May 8, 2012, at approximately 12:50 p.m., Plaintiff DENNIS EUGENE GREEN was lawfully inside 177 Sands Street, in the County of Kings, City and State of New York, when he was suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER JONATHAN DECASTRO,

BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3.

13. That on the aforementioned date, time and place, Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, stopped Plaintiff DENNIS EUGENE GREEN, ordered Plaintiff to show them identification, and frisked Plaintiff despite Defendants' knowledge that they lacked reasonable suspicion to do so.

14. Thereafter, Plaintiff DENNIS EUGENE GREEN was handcuffed and placed under arrest for Criminal Trespassing despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

15. That Plaintiff DENNIS EUGENE GREEN was transported to Police Service Area 3 (25 Central Avenue, Brooklyn, New York 11206) of the New York City Police Department where he was subjected to an unlawful "strip-search", and his arrest was processed. Thereafter, Plaintiff was transported to Brooklyn Central Booking (120 Schermerhorn Street, Brooklyn New York 11201) for arraignment, and then to Rikers Island.

16. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 initiated criminal proceedings against Plaintiff DENNIS EUGENE GREEN despite Defendants' knowledge that they lacked probable cause to do so.

17. That Plaintiff DENNIS EUGENE GREEN was incarcerated by Defendant CITY OF NEW YORK, its agents, servants, and employees from approximately 12.50 p.m. on May 8, 2012, to approximately 9:00 p.m. on May 15, 2012, when he was released from New York City Department of Correction custody.

18. That all charges against Plaintiff DENNIS EUGENE GREEN related to the

complained of incident have been dismissed (Docket Number 2012KN037666).

19. That on or about June 26, 2012, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff DENNIS EUGENE GREEN duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

20. This action is commenced within one year and ninety days after the cause of action arose.

21. This action falls within one or more of the exceptions set forth in CPLR §1602

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

22. Plaintiff DENNIS EUGENE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

23. That at the aforementioned time and place, Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, placed Plaintiff DENNIS EUGENE GREEN under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

24. That Plaintiff DENNIS EUGENE GREEN had not committed any offense and Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

25. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 were aware that probable cause did not exist for the arrest and detention of Plaintiff DENNIS EUGENE

GREEN and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff DENNIS EUGENE GREEN and such actions were committed in bad faith.

26. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff DENNIS EUGENE GREEN and such actions were committed in bad faith.

27. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff DENNIS EUGENE GREEN was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

28. As a further result of the above-described acts, Plaintiff DENNIS EUGENE GREEN was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

29. Plaintiff DENNIS EUGENE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That Plaintiff DENNIS EUGENE GREEN was falsely imprisoned from May 8, 2012,

to May 15, 2012, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

31. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 intended to confine Plaintiff DENNIS EUGENE GREEN and Plaintiff DENNIS EUGENE GREEN was conscious of the confinement, and Plaintiff DENNIS EUGENE GREEN did not consent to the confinement.

32. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff DENNIS EUGENE GREEN and damaging Plaintiff DENNIS EUGENE GREEN in his reputation and depriving him of his liberty.

33. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588 and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff DENNIS EUGENE GREEN suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

34. Plaintiff DENNIS EUGENE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 misrepresented and falsified evidence before the District Attorney.

36. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 did not make a complete and full statement of facts to the District Attorney.

37. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 withheld exculpatory evidence from the District Attorney.

38. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 were directly and actively involved in the initiation of criminal proceedings against Plaintiff DENNIS EUGENE GREEN.

39. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 lacked probable cause to initiate criminal proceedings against Plaintiff DENNIS EUGENE GREEN.

40. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL

UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 acted with malice in initiating criminal proceedings against Plaintiff DENNIS EUGENE GREEN.

41. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 were directly and actively involved in the continuation of criminal proceedings against Plaintiff DENNIS EUGENE GREEN.

42. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 lacked probable cause to continue criminal proceedings against Plaintiff DENNIS EUGENE GREEN.

43. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 acted with malice in continuing criminal proceedings Plaintiff DENNIS EUGENE GREEN.

44. That Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 misrepresented and falsified evidence throughout all phases of the criminal proceeding.

45. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, the criminal proceedings were terminated in Plaintiff DENNIS EUGENE GREEN's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

46. Plaintiff DENNIS EUGENE GREEN repeats, reiterates, and realleges each and every

paragraph of this complaint and further alleges:

47. Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff DENNIS EUGENE GREEN.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff DENNIS EUGENE GREEN as alleged herein.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff DENNIS EUGENE GREEN as alleged herein.

52. Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff DENNIS EUGENE GREEN's constitutional rights.

53. All of the foregoing acts by defendants deprived Plaintiff DENNIS EUGENE GREEN of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To be free from malicious abuse of process;
- F. Not to have cruel and unusual punishment imposed upon him;
- G. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

54. Plaintiff DENNIS EUGENE GREEN repeats, reiterates and realleges each and every allegation contained in this complaint.

55. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff DENNIS EUGENE GREEN's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

56. As a result of the aforementioned conduct of the individual Defendants, Plaintiff DENNIS EUGENE GREEN's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

57. Plaintiff DENNIS EUGENE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

58. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant

employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

59. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3 to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

60. Plaintiff DENNIS EUGENE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

61. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff DENNIS EUGENE GREEN. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

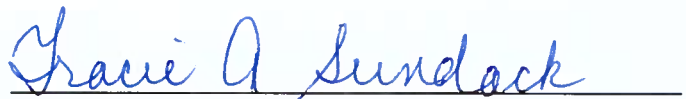
62. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA

3, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff DENNIS EUGENE GREEN.

63 As a result of the foregoing, Plaintiff DENNIS EUGENE GREEN is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff DENNIS EUGENE GREEN demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER JONATHAN DECASTRO, BADGE NUMBER 94489, SERGEANT JWANN LAYTON, BADGE NUMBER 925588, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 3, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
August 1, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
DENNIS EUGENE GREEN
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
August 1, 2013


TRACIE A. SUNDACK